

Mohd. Jubair v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 24 July 2018 · Writ - C No. 24449 of 2018 · **Writ petition disposed of; restoration refused until deposit of assessment and other charges under clauses 8.1(viii) and 8.2(viii); petitioner to appear before respondent no. 3 with objections within 15 days for a final assessment; no coercive action until that order**

HEADNOTE

Where inspection discloses theft of electricity and an FIR is lodged under section 135 of the Electricity Act, 2003, clauses 8.1(viii) and 8.2(viii) of the U.P. Electricity Supply Code, 2005 condition restoration of a disconnected supply on removal of the cause of theft and on payment of the assessment (and compounding) charges demanded. A licensee is therefore justified in refusing restoration until those charges are deposited; a writ seeking reconnection without that deposit will not be granted. If objections to the provisional assessment remain pending, the consumer is to appear before the assessing authority with those objections; a final assessment is then to be passed after considering the objections and any evidence, and no coercive action is to be taken until that final order.

FACTUAL SUMMARY

Mohd. Jubair held connection no. 6705/303971 (meter TN-147356) at House No. 97A, Aijaj Nagar, Gautiya, Bareilly. On inspection he was found committing theft of electricity. An FIR dated 24 October 2017 was lodged under section 135 of the Electricity Act, 2003 at Police Station Bardari, Bareilly. The licensee issued a provisional assessment and directed him to object within 15 days, but fixed no date for personal appearance. His application dated 20 March 2018 seeking restoration was rejected on 12 April 2018 by respondent no. 3 on the ground that, because of the section 135 FIR, the connection could not be restored without deposit of penalty and outstanding dues. He sought certiorari to quash that order and mandamus to restore supply. He had also filed objections to the provisional assessment, which remained undecided.

REUSABLE CONSTRUCTIONS

1. Under clause 8.1(viii) of the U.P. Electricity Supply Code, 2005, where theft is detected by bypassing the meter, supply disconnected on the spot is restored only after the cause of theft is removed to the licensee's satisfaction and the person pays the assessment bill, with due opportunity for representation. ¶ 3-4
2. Under clause 8.2(viii), supply is restored if the consumer pays the compounding or assessment charges demanded and complies with the licensee's directions. ¶ 3-4
3. A writ seeking restoration of a theft-disconnected connection without depositing those charges will fail; pending objections to the provisional assessment must still be decided by a final assessment after personal appearance, and coercive action is stayed until that final order. ¶ 4-6

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

Restoration after theft by meter-bypass is conditioned on removing the cause of theft and paying the assessment bill

QUESTION

Where theft is alleged, an FIR under section 135 has been lodged, and restoration is refused for want of deposit of penalty and dues, is the licensee justified in withholding reconnection until the assessment bill is paid?

HOLDING

Yes. Clause 8.1(viii) provides that where theft is detected by bypassing the meter or metering equipment and load is found connected directly to the lines, cables or electrical plant, supply shall be disconnected forthwith

on the spot and restored only after the cause of theft is removed to the licensee's satisfaction and the person pays the charges raised as per the assessment bill, with due opportunity for representation as prescribed in the Code. Respondent no. 3 was fully justified in not restoring the connection before deposit of the electricity dues and other charges so provided. ¶ 3-4

FLAG The 12.04.2018 refusal cited the section 135 FIR; the Court applied clause 8.1(viii), which as quoted is confined to theft by bypassing the meter. The order recites that the petitioner was found committing theft but does not independently record a meter-bypass finding.

HOLDING-UNIT · UP-2005::8.2

Restoration after theft requires payment of compounding or assessment charges demanded

QUESTION

Does clause 8.2(viii) independently condition restoration on payment of the compounding or assessment charges demanded?

HOLDING

Yes. Clause 8.2(viii) provides that supply shall be restored if the consumer pays the charges demanded (compounding charges / assessment charges if any) and complies with the licensee's directions. Together with clause 8.1(viii), that justified refusal of restoration before deposit. ¶ 3-4

HOLDING-UNIT · UP-2005::8.1

Pending objections to a theft provisional assessment must be decided before coercive action

QUESTION

Where objections to a theft provisional assessment remain undecided, may the writ court leave restoration refused and still require a final assessment, staying coercive action until then?

HOLDING

Yes. The petitioner had filed objections to the provisional assessment which had not been decided, and no date had been fixed for personal appearance. He is directed to appear before respondent no. 3 personally with those objections; if he does so within 15 days, that authority shall pass the final assessment after considering the objections and any evidence. No coercive action shall be taken until the final assessment is passed. The 12.04.2018 refusal of restoration was not quashed. ¶ 2, 5-6

FLAG The Court did not cite a numbered sub-clause for the objection-and-final-assessment direction. Keyed to Clause 8.1 as the theft-assessment procedure. Counsel for the licensee stated that if the petitioner appeared personally with his objection, the authority would pass the final assessment.

PRINCIPLE TAGS

theft-restoration-conditional-on-assessment-payment Clauses 8.1(viii) and 8.2(viii) were applied to uphold refusal of restoration after a section 135 FIR until the consumer deposited the assessment (and compounding) charges and the cause of theft was removed. The 12.04.2018 order was not quashed and mandamus to reconnect was refused. ¶ 3-4

no-coercive-action-until-final-assessment Although restoration was refused until deposit, coercive action was stayed until the assessing authority passed a final assessment on the pending objections. ¶ 6

opportunity-before-final-assessment Objections to the provisional assessment remained undecided and no personal-hearing date had been fixed. The petitioner was directed to appear within 15 days; the authority must then pass a final assessment after considering the objections and any evidence. ¶ 2, 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IN FACT COMMITTED THEFT OF ELECTRICITY

The Court proceeded on the inspection recital and the section 135 FIR; it did not try the theft charge. ¶ 2, 4

NOT DECIDED — QUANTUM OF THE PROVISIONAL ASSESSMENT, PENALTY, OR OUTSTANDING DUES

Left to the final assessment after objections and evidence. ¶ 5-6

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